

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 23, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 25CV01822

LAM v. KING, et al.

**PLAINTIFF’S MOTION FOR RECONSIDERATION AND MOTION FOR
LEAVE TO FILE CROSS-COMPLAINT**

Plaintiff’s motions are denied with prejudice. Defendants are directed to submit a form of judgment.

I. BACKGROUND

Self-represented plaintiff Le V. Lam’s first amended petition sought to establish an easement by necessity and right of way to a dirt road adjacent to his vacant land in Boulder Creek, CA. The same parcels at issue in this case were at issue in the *Estate of Andrew John Farkas*, Santa Cruz Superior Court no. PR046216 (“*Farkas* case”). When plaintiff purchased the parcels in January 2025 from the administrator of the Farkas Estate (McLaughlin), he believed he would have access through an existing dirt road (“Tradewinds Drive”) that crosses two other parcels. However, the owners of those other parcels (defendants Kendal King and Jeremy and Kelly Dybdahl) denied him access to use that road over their property, pursuant to the 2019 judgment in the *Farkas* case. Without the ability to access the dirt road, plaintiff is landlocked. His action sought to reinstate the purported easement.

Defendant Kendall King filed a general demurrer to and motion to strike the amended petition based on res judicata and collateral estoppel. The Court sustained the demurrer without leave to amend, granted the motion to strike, and permitted co-defendants Jeremy Dybdahl and Kelly Dybdahl to join those motions. Following that ruling, a notice of entry of order was filed on April 23, 2026 in favor of all defendants (Kendall King, Jeremy Dybdahl and Kelly Dybdahl).

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 23, 2026 TIME: 8:30 A.M.

Plaintiff now files two motions – for reconsideration pursuant to Code of Civil Procedure section 1008, and for leave to file a cross-complaint against defendant King for fraud.

Although petitioner is self-represented, such a party is to be treated like any other party and is entitled to the same, but no greater, consideration than other litigants and attorneys. (*Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944.)

A. Motion for reconsideration

A motion for reconsideration must be “based upon new or different facts, circumstances, or law.” (Code Civ. Proc., § 1008, subd. (a).)¹ The moving party “shall state by affidavit... what new or different facts, circumstances, or law are claimed to be shown.” (*Ibid.*) The moving party must also show diligence and explain why he or she could not have presented the new or different facts or law earlier. (*California Correctional Peace Officers Assn. v. Virga* (2010) 181 Cal.App.4th 30, 46; *Baldwin v. Home Sav. of America* (1997) 59 Cal.App.4th 1192, 1200.)

Plaintiff’s motion presents no new facts, circumstances, or law, or any affidavit of such. Plaintiff’s purported new fact is the failure of a previous owner (Maleti) to include an easement over King’s property in the grant deed to Farkas. But this is not new; he presented this argument in the underlying proceeding. To the extent plaintiff failed to argue previously that Maleti breached his duty to Farkas, plaintiff fails to explain why he did not or could not have presented that argument. Plaintiff further fails to refute the evidence of res judicata and collateral estoppel that apply in this case and bars plaintiff’s first amended petition, as described in the Court’s April 23, 2026, order after hearing.

B. Motion for leave to file cross-complaint

The Court has discretion to permit filing of the proposed cross-complaint since it is permissive, not compulsory. But based on the underlying findings of res judicata and collateral estoppel, the Court will not permit any cross-complaint to be filed.

Plaintiff relies on section 426.50, compulsory cross-complaints, as the basis for his motion. Compulsory cross-complaints are those which contain a related cause of action to the allegations in the complaint. (§ 426.30.) A related cause of action is one which arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause of action which is alleged in the complaint. (§ 426.10; *Crocker National Bank v. Emerald* (1990) 221 Cal.App.3d 852, 863.)

In this case, the King cross-complaint is the operative complaint. The transaction which is at issue in the King cross-complaint is the transfer of the Lam Property from McLaughlin to

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LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 23, 2026 TIME: 8:30 A.M.

Lam in 2025. Since King was not involved in that 2025 transaction (which is the subject of the King cross-complaint), Lam's proposed cross-complaint is based on a transaction or occurrence which is unrelated to the 2025 transaction. Therefore, the proposed cross-complaint is not compulsory and is instead permissive. (§ 428.50.) Permission to file a permissive cross-complaint is solely within the trial court's discretion. (*Crocker National Bank v. Emerald, supra*, 221 Cal.App.3d at p. 864.)

Plaintiff asserts that the Lam Property has an easement over the King Property because Lam's predecessors in interest acquired such easement and that such easement passed down through the chain of title to him. He therefore alleges that King has committed fraud against him by stating that there is no easement for the benefit of the Lam Property over the King Property. This is insufficient to support any claim for fraud since he has failed to plead any scienter by King; plaintiff acknowledges that he and King had no contact until he sued King in this action. Further, to the extent plaintiff seeks to base his fraud claims on statements made by King in the *Farkas* case or in King's cross-complaint, he is precluded from doing so pursuant to the litigation privilege. (Civil Code § 47, subd. (b).)

No. 26CV00542

TURNER v. GOLDEN STATE ORTHOPEDICS, et al.

DEFENDANTS CHRISTIAN S. HEYWOOD, M.D., GOLDEN STATE ORTHOPEDICS & SPINE, AND ORTHONORCAL INC.'S DEMURRER AND MOTION TO STRIKE FIRST AMENDED COMPLAINT

The demurrer is sustained with leave to amend. Plaintiff may file a second amended complaint, no later than August 21, 2026, that fully complies with Code of Civil Procedure section 425.10, subdivision (a)(1), and related Rules of Court. Based on this ruling, the motion to strike is denied as moot.

Plaintiff David Turner filed his 68-page first amended complaint for medical malpractice on April 17, 2026. While it is nearly impossible to deduce what the basis of his suit is, it appears that Dr. Heywood treated plaintiff's shoulder in 2024-2026 following a surgery by another doctor sometime in 2014 or 2016. Plaintiff also blames doctors at Doctors On Duty for failure to prescribe various modalities and treatment.

A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (*Taylor v. City of Los Angeles Dept. of Water and Power*

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 23, 2026 TIME: 8:30 A.M.

(2006) 144 Cal.App.4th 1216, 1228.) The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law” (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 525.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters; therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (CCP §§ 430.30, 430.70.) The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action. (*Hahn, supra*, 147 Cal.App.4th at 747.)

“A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (*Khoury v. Maly’s of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) “A demurrer for uncertainty will be sustained only where the complaint is so bad that defendant *cannot reasonably* respond—i.e., he or she cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her.” (Weil & Brown, Civil Procedure Before Trial (The Rutter Group 2025) § 7:85 (emphasis in original).) “The objection of uncertainty does not go to the failure to allege sufficient facts.” (*Brea v. McGlashan* (1934) 3 Cal.App.2d 454, 459.) “It goes to the doubt as to what the pleader means by the facts alleged.” (*Ibid.*) “Such a demurrer should not be sustained where the allegations of the complaint are sufficiently clear to apprise the defendant of the issues which he is to meet.” (*People v. Lim* (1941) 18 Cal.2d 872, 882.)

Where the complaint prevents a party from reasonably determining what issues must be admitted or denied, or what counts are alleged against it, a demurrer for uncertainty can be sustained. (*Khoury v. Maly’s of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616; *Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139.)

Plaintiff’s status as self-represented does not provide a basis for preferential treatment. (*Stover v. Bruntz* (2017) 12 Cal.App.5th 19, 31.) “When a litigant is appearing in propria persona, he is entitled to the same, but no greater, consideration than other litigants and attorneys.” (*Nelson v. Gaunt* (1981) 125 Cal.App.3d 623, 638.) This means that plaintiff is “held to the same restrictive rules of procedure as an attorney.” (*Id.* at 638-639; *Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543.) “[M]ere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation....” (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985, citation omitted.)

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 23, 2026 TIME: 8:30 A.M.

The Court agrees that plaintiff's first amended complaint is fatally uncertain. First, it is not clear which defendants are named for which of the two causes of action. Second, the allegations as a whole are set out in a rambling, incoherent manner; should plaintiff amend he must state his contentions in ordinary and concise language. A complaint must, among other things, contain "[a] statement of the facts constituting the cause of action, in ordinary and concise language." (Code Civ. Proc., § 425.10, subd. (a).) For example, plaintiff lists in exhaustive detail what appears to be snippets from his own medical records and indecipherable medical jargon – such detail confuses the issue of what procedure and what medical practitioner is allegedly responsible for plaintiff's harm. It is not even clear when the medical treatment was provided.

Plaintiff is cautioned that any amendment must be concise and clearly describe the treatment at issue, who provided that treatment, and when. Plaintiff is also reminded that responsive papers must be filed within the deadlines prescribed by the Rules of Court and served on all parties to the action (his oppositions to the motion were filed one court day late and he failed to serve them).

No. 23CV01548

CHEPOURKOVA v. CHEPOURKOVA

**MOTION FOR INTERLOCUTORY JUDGMENT OF PARTITION AND
APPOINTMENT OF REFEREE**

The parties shall appear to determine if they can reach an agreement/stipulation to proceed with an interlocutory judgment on the papers presented, or agree to a sale price for Anna's purchase. Since the statutory scheme allowing interlocutory judgments requires either a trial or dispositive motion, and none has yet occurred here, the current motion does not support the granting of an interlocutory judgment.

I. INTRODUCTION/BACKGROUND

The parties' declarations provide the following facts:

Plaintiff Tatiana Chepourkova ("Tatiana") and defendant Anna Chepourkova ("Anna") are sisters and each own an undivided 50% interest as tenants in common in an undeveloped, unoccupied parcel in Santa Cruz County (APN 097-111-08). Both parties are self-represented. Tatiana anticipates that Anna will make claims for reimbursement and/or contribution, which Tatiana will dispute. Tatiana seeks the appointment of a referee and sale of the property.

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 23, 2026 TIME: 8:30 A.M.

Anna opposes the motion and declares that following mediation with Judge Schmal, she and Tatiana both hired appraisers. Anna's valuation was \$145,000.00 (James Brumfield, appraiser) and Tatiana's was \$360,000.00 (Brian Nicholson, appraiser). When this action was filed in 2023, both sisters had counsel and their negotiations for Anna to purchase Tatiana's interest fell through. They listed the property for sale in 2024 for \$350,000.00 pursuant to their Settlement Agreement. (Anna Declaration, Exhibit A.) When the property received no offers and did not sell in nine months, despite price reductions delineated in the Agreement, the agents canceled the listing agreement. The sisters discussed listing the property for \$299,000.00 but Tatiana would not agree and instead asked Anna to make her an offer that she would accept or she would proceed with a partition action.

Anna acknowledges she has paid to remove diseased trees and contributed to the cost of the shared private road, but she will not seek reimbursement. Anna does not address whether she agrees that a referee be appointed to sell the parcel and split the proceeds, but she has sought to purchase her sister's portion for years.

II. LEGAL STANDARDS

Partition is an equitable action that is governed by statute. (CCP § 872.010 et seq.)² Property may be partitioned by physical division, sale of the property and division of the proceeds, or court approved and supervised partition by appraisal. (§§ 873.210-290, 873.510-850, 873.910-980.) "The interests of the parties, plaintiff as well as defendant, may be put in issue, tried, and determined in the action." (§ 872.610.) "Court determination of right to partition. *At the trial*, the court shall determine whether the plaintiff has the right to partition." (§ 872.710(a) (emphasis added).) If the court finds that the plaintiff is entitled to partition, it shall make an interlocutory judgment that determines the interests of the parties in the property and orders the partition of the property. (§ 872.720(a).) Thereafter, the court shall order that the property be divided in accordance with the parties' interests as determined in the interlocutory judgment. (§ 872.810.) If the court orders sale, the court shall appoint a referee to divide and sell the property. (§§ 872.010, 873.020.) The statutory scheme envisions an interlocutory judgment of partition must come as the result of a trial -- or summary judgment under § 437c. (*See LEG Investments v. Boxler* (2010) 183 Cal.App.4th 484 [reversing denial of, and ordering trial court to grant, plaintiff's motion for summary adjudication on partition cause of action].)

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LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 23, 2026 TIME: 8:30 A.M.

III. DISCUSSION

Tatiana seeks partition of the property by appointment of a referee and sale. Neither party addresses the requirement of a trial or dispositive motion prior to interlocutory judgment. While plaintiff has consented to an interlocutory judgment, defendant has not.

Based on the status of the case, an interlocutory judgment for partition is premature. An order for sale upon partition may only be made after a trial or dispositive motion determining the parties' interests and rights, or presumably by stipulation. Plaintiff does not provide any legal authority that the interlocutory judgment can result from the type of motion filed.